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SOPHIC AUTOMATION SDN BHD

Company Reg. No. 200701036965 (794994-D)
Sales Tax ID No. : P11-1808-21003543

Headquarters
No. 9, Jalan Industri Tangkas 1
Taman Industri Tangkas
14100 Bukit Mertajam
Pulau Pinang, Malaysia
Tel: +60 4-640 9087/9088/9089

Branch
No. 6 & 8, Lorong Perindustrian Bukit Minyak 1/1,
Taman Perindustrian Bukit Minyak
14100 Simpang Ampat, Pulau Pinang.
Pulau Pinang, Malaysia
Fax: 04-2932911

No.: 2122
Date: 08/08/2023

========== PURCHASE ORDER ==========

KEYGIES SDN BHD
sdad
adasd
ad

Tel: 1233 Fax: 3321

Delivery To:
saasas

Ref No.: 323 | **Payment Terms :** 2212 | **Goods Recipent :** Jian Lit(FAS)

No	Description	Qty	Unit Price	Disc.	Amount(RM)
1	23SP-R-003-02	2	65.00	0.00	130.00
2	23SP-R-003-03	2	55.00	0.00	110.00

Date of Required: 23/08/2023

RINGGIT M'SIA TWO HUNDRED FOURTY ONLY

Subtotal	240.00
Discount	0.00
Nett	240.00
Tax	0.00
Grand Total	240.00

THIS PURCHASE ORDER IS ELECTRONICALLY APPROVED AND GENERATED. NO SIGNATURE NEEDED.

THIS PURCHASE ORDER ALONG WITH PURCHASE ORDER STANDARD TERMS AND CONDITIONS SET OUT IN APPENDIX A SHALL CONSTITUTE THE PURCHASE CONTRACT BETWEEN THE BUYER AND SUPPLIER.

SOPHIC AUTOMATION SDN BHD
Company No. 200701036965 (794994-D)

APPENDIX A
PURCHASE ORDER STANDARD TERMS AND CONDITIONS

1. **Order.** This Order ("**Order**") consists of these Terms and Conditions ("**Terms and Conditions**"), the Purchase Order ("**Purchase Order**") and the relevant exhibits, schedules, annexures, drawings and/or documents in relation to the Purchase Order. This Order serves as the offer of, and is delivered by Sophic Automation Sdn Bhd or an affiliate thereof, as identified on the face of the Purchase Order (each, a "**Buyer**") to the Supplier specified in the Purchase Order ("**Supplier**") with regard to the products(s) and/or service(s) set forth therein ("**Products**" and "**Services**", respectively). THIS ORDER HEREBY EXPRESSLY LIMITS ACCEPTANCE TO THE TERMS AND CONDITIONS CONTAINED IN THIS ORDER. Upon its acceptance by Supplier, this Order shall constitute a binding agreement. Any written acceptance by Supplier, and/or any delivery by Supplier of Products or Services and/or the acceptance of any payments pursuant hereto, each shall be deemed an acceptance by Supplier of this Order without modification. This Order (including attached exhibits, schedules, and annexes) shall control the purchase and use of the Products and/or Services and performance thereof, and sets forth the entire, final, and complete agreement of Buyer and Supplier with respect to the subject matter hereof.

2. **Delivery.** TIME IS OF THE ESSENCE. Buyer may at its absolute discretion reschedule any delivery date upon notice to Supplier. In case Supplier fails to make delivery on time, Supplier agrees to notify Buyer (in writing) immediately of any matters or events and reasons that cause the delay of delivery of the Products and/or Services hereunder. If Buyer recognizes the reasons as valid and accepted by Buyer, Supplier shall not be held accountable for any liability for overdue delivery; however, if Buyer recognizes the reasons as invalid, Supplier shall pay liquidated damages to Buyer at RM200 per day or 2% of this Order value at the absolute discretion of Buyer. If expedited shipment becomes necessary to fulfil Supplier's delivery obligations, Supplier shall pay the difference between the expedited charges and ordinary freight charges.

3. **Undertaking.** Supplier hereby irrevocably and unconditionally warrants and undertakes that all Products and/or Services supplied to Buyer shall: (i) be of merchantable quality and free from any defects (in materials, workmanship, and design, unless the design was solely supplied by Buyer) rendering them unmerchantable or unfit for their intended purpose including but not limited to defect which is apparent on reasonable examination by Buyer of samples of the Products and/or Services provided by the Vendor for a period of one (1) year from the date of delivery of the Products and/or Services hereunder as specified in the Purchase Order; (ii) conform strictly to any specifications or requirements set forth in the Order and any variation to the specifications or requirements must be approved by Buyer in writing; (iii) not infringe or pass off any patent, copyright, trade secret, trademark, service mark, or other intellectual property or proprietary right of any third party; (iv) be free from liens and encumbrances and other restrictions; (v) comply with all applicable statutory and regulatory requirements (whether in Malaysia or elsewhere), including but not limited to all applicable consumer protection, advertising, product safety, product recall and/or fair-trade practices laws and/or rules and regulations issued by the appropriate authorities; and (vi) be manufactured, packaged, packed, marked, stored, handled, labelled and described in the manner as agreed upon by the parties and shall in compliance with all applicable laws, including but not limited to laws relating to quality, grade, weight and volume, fitness, efficiency, contents and purity, labelling, advertising, description, minimum durability, safety and the use of the products. The Supplier agrees and acknowledges that all warranties related to the Products and/or Services shall survive any inspection, delivery, acceptance, payment, expiration or earlier termination of this Order and such warranties shall run to Buyer, its successors in title, permitted assigns and Buyer's customers. Supplier warrants that Supplier, and its employees, agents and subcontractors, and the Products and/or Services shall comply with all applicable laws, rules, and regulations, including, without limitation, those relating to: (a) import, export, and re-export of commodities, materials, technical data, and software; (b) health and safety; (c) labour and employment; (d) the environment; (e) use, treatment, disposal, and handling of hazardous chemical and materials; and (f) data privacy, data protection, and security breach notice laws and regulations. Supplier must also require its own suppliers comply with all applicable laws, rules and regulations. Supplier undertakes to make known to the management of Buyer immediately should there be any case of alleged intellectual property infringement of any Products and/or Services provided by Supplier to Buyer.

   Supplier further warrants and undertakes to: (i) comply and fulfil all the Terms and Conditions as stipulated herein and the terms and conditions as stated in the Purchase Order issued by Buyer including but not limited to the pricing, warranty period and services, delivery, shipment and payments terms; (ii) assume all risk of loss and/or damage to the product of the Supplier until it has been delivered to the Buyer's designated facility; (iii) comply with the warranties herein, failing which the Buyer may at its absolute discretion and in addition to any of its other legal or equitable rights or remedies (a) return such defective or non-conforming products to the Supplier at the Supplier's costs and expense and obtain a refund of the full price paid by the Buyer for such products; (b) require the Supplier to replace, remedy or make good the Products at the Supplier's costs and expenses within five (5) working days from the receipt of a written notice from Buyer or such period of time to be agreed upon by the parties and/or to reperform the services to the reasonable satisfactions of the Buyer; or (c) obtain a substitute of such products and/or services from any third party and deduct from payments owing by Buyer to the Supplier or charge the cost and expense incurred for such replacement or acquisition of the substitute products and/or services; (iv) abide by all Buyer's policies and the applicable existing and hereafter created laws and regulations in the Supplier's country or territory of sale and comply with all applicable Laws of Malaysia in providing such Products and/or Services to Buyer; (v) not engage in nor require Buyer to engage in any activity, practice or conduct which would constitute an offence under any applicable laws; (vi) conduct its business in a lawful manner consistent with business ethics, and shall not use fraud, coercion and other improper means to harm the interest of customers or commit any acts which may have adverse effect on Buyer or damage the business reputation of Buyer; (vii) obtain and maintain all licenses, permissions, authorizations, consents, approvals and permits needed to manufacture and/or supply the Products and/or Services to Buyer in compliance with all applicable Laws, and shall provide copies of the same to Buyer within five (5) working days upon receipt of the written request from Buyer; (viii) not subcontract or assign any of its obligations under this Order without the prior written consent of the Buyer. The Supplier shall be jointly and severally liable and responsible for the acts and omissions of all assigns and subcontractors; and (ix) not to disclose to any third party any terms of this Order or the fact that the Supplier is supplying Products and/or performing Services to the Buyer without the prior written consent of the Buyer.

4. **Indemnification.** Supplier shall defend, indemnify, and hold harmless Buyer and its affiliates, customers, and each of their respective successors, assigns, employees, officers, directors and agents with respect to all liabilities, losses, damages, costs and expenses, including without limitation, reasonable attorney's fees and costs, relating to or arising out of any actual or alleged claims for: (i) patent, copyright, trademark infringement, trade secret misappropriation, passing-off, or violation of any other intellectual property or proprietary right, arising out of the purchase, sale, or use of the Products and/or Services by Buyer, its agents, or customers; (ii) Supplier's omission, negligence or any misconduct or breach by the Supplier of its warranties and obligations however arising in connection with this Order; and (iii) death, personal injury, or property damage arising out of the use of the Products and/or Services by Buyer, its agents, or customers. If an intellectual property indemnification or misappropriation claim is or is likely to be made, then in addition to, and without limiting, the indemnification obligations in the immediately preceding sentence, Supplier shall, at its own expense, exercise the first of the following remedies that is practicable: (a) obtain for Buyer the right to continue to use, sell, and license the Products and/or Services consistent with this Order; (b) modify Products and Services so they are non-infringing and in compliance with this Order; (c) replace the infringing Products and Services, and any other affected Products or Services, with non-infringing ones that comply with this Order; or (d) at Buyer's request, accept the cancellation of infringing Services and the return of infringing Products and refund any amounts paid.

5. **Intellectual Property/ Works Made For Hire.** All intellectual property rights which the Buyer makes available, contributes, brings to or uses in connection with the Order are and shall remain the property of the Buyer. The Supplier further warrants and undertakes that it will not use or display the Buyer's trademark, trade name and/or other intellectual property rights in any instance for advertising, reference or whatsoever purposes without the prior written consent of the Buyer. In the event this Order entails development work by Supplier for Buyer, then as part of the consideration of this Order, and with no further costs to Buyer, any and all copyrights, design, design rights, patents, trademarks, and all other intellectual property developed, made, conceived, and/or reduced to practice by Supplier for Buyer, in any manner connected with Supplier's performance of such development work (individually, or collectively, the "**Works**"), are works made for hire and shall exclusively belong to Buyer. Supplier shall have no rights, title, license, or interest in such Works, and hereby irrevocably assigns, conveys, and otherwise transfers to Buyer all rights, title, and interest in and to the Works at that moment in time when the Works are created.

6. **Confidentiality.** The Supplier shall keep confidential and not disclose to any third party, or use for any purpose other than performing its obligations under this Order, any confidential or proprietary information received from the Buyer, including but not limited to trade secrets, customer information, financial information, and any other non-public information designated as confidential ("**Confidential Information**"). The Supplier shall take all reasonable measures to protect the confidentiality and security of the Confidential Information, and shall not disclose or permit access to the Confidential Information except to its employees, agents, or subcontractors who have a need to know and are bound by similar confidentiality obligations. The obligations of confidentiality shall survive the termination or expiration of this Order.

7. **Miscellaneous.** Supplier acknowledges that no activity by the Supplier in the performance of this Order shall constitute, create or be deemed to constitute or create between either party, an agency or representative relationship or partnership, joint venture or association nor any activity by either party hereunder create or be deemed to create any express or implied right, power or authority of either party to enter into any agreement or commitment, or to incur any liability or obligation, on behalf of the other party. It is being understood and agreed that each party is and shall remain an independent contractor with respect to the other. This Order and these Terms and Conditions shall be binding on the respective estate, heirs, personal representatives and successors in title and permitted assigns of the parties hereto. The rights which Buyer has under this Order shall be not prejudiced or restricted by any indulgence of forbearance extended to the Supplier. No waiver, or failure by either party at any time to enforce any of its rights hereunder, shall constitute a continuing waiver for any particular breach or a waiver for any subsequent or different breach. This Order shall not be varied or cancelled, unless the variation or cancellation is expressly agreed in writing by the duly authorized personnel of each party. If any provision of this Order is found by the Court or other competent authority to be void or unenforceable, it shall be deemed to be deleted from this Order and the remaining provisions shall continue to apply. The construction, validity and performance of this Order shall be governed by the Laws of Malaysia. The High Court of Malaya has jurisdiction to settle any dispute which arises between the parties in respect of this Order, validity and performance of this Order as to the rights and liabilities of the parties thereto.